

IAS PRELIMS/MAINS

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SCIENCE & TECHNOLOGY

A COMPREHENSIVE COVERAGE

MODULE - 22

INFORMATION & COMMUNICATION TECHNOLOGY (ICT) - 3

TRAI RECOMMANDATIONS ON NET NEUTRALITY

The Telecom Commission has accepted Telecom Regulatory Authority of India's (TRAI's) recommendations on Net Neutrality. They are -

1 PROHIBITS DISCRIMINATION

- It upholds basic principle of net neutrality by keeping Internet open and prohibits any Internet service providers (ISPs) from discrimination on basis of content by either blocking, throttling or fast-laning any websites, apps or web services.
- ISPs cannot block or throttle any web traffic or offer fast lanes for content providers who pay for the privilege.



TRAI RECOMMENDATIONS ON NET NEUTRALITY

2

PROTECTION OF RIGHTS OF CITIZENS

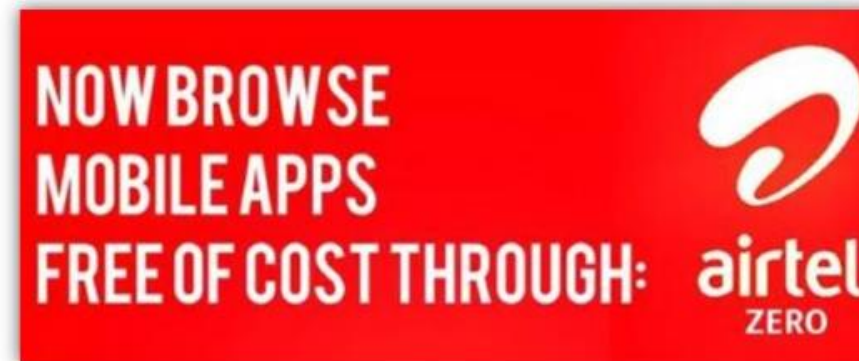
- The internet use should be facilitated in such manner that it advances free speech rights of citizens, by ensuring plurality and diversity of views, opinions and ideas.
- It also restrains ISPs from entering into pacts with any person who discriminates on content, protocol or user equipment.



TRAI RECOMMENDATIONS ON NET NEUTRALITY

3 PROTECTION OF RIGHTS OF CITIZENS

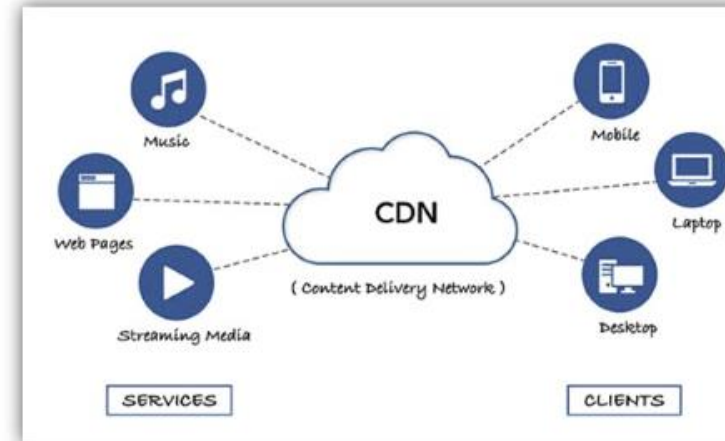
- It also restrains ISPs from entering into pacts with any person which discriminates on content, protocol or user equipment.
- It means that service providers can't enter into agreements such as Facebook's 'Free Basics' or Airtel Zero which proposed to offer only a set of services or websites for free. To use other services, users would have had to pay additional charges



TRAI RECOMMENDATIONS ON NET NEUTRALITY

4 EXEMPTIONS

- It excludes specialized services and Content Delivery Networks (CDNs) from scope of any rules on net neutrality. It does not define specialized services and leaves it to DoT to identify these services.
- It also calls for keeping Internet of Things (IoT) within purview of non-discriminatory restriction with the exception of critical services.



TRAI RECOMMENDATIONS ON NET NEUTRALITY

4 EXEMPTIONS

- It exempt CDNs from the scope of net neutrality rules arguing that CDNs add efficiency to network by reducing latency, mitigating congestion and freeing up network capacity for other purposes. CDNs are layer in Internet networks which are outside public Internet and are used by content generators to store their data at suitable geographical locations.
- So, Internet of Things (IoT), as a class of services, is not excluded from the scope of the restriction of non-discriminatory treatment. However, critical IoT services, which may be identified by department of telecom as specialised services will be excluded.



TRAI RECOMMENDATIONS ON NET NEUTRALITY

SPECIALIZED SERVICES

- Emerging and critical services like remote surgery and autonomous cars that may require high-speed internet lanes have been kept out of the ambit of net neutrality rules.
- The Department of Telecom has to define the technologies that will be allowed the exception where telecom companies will be allowed to use traffic management practices to maintain the quality of service.



TRAI RECOMMENDATIONS ON NET NEUTRALITY

- 5 TSPs should be required to declare their Traffic Management Practices (TMP), as and when deployed and the impact it may have had on the users. The disclosure requirements shall also include information about specialised services, direct or indirect arrangements entered into by them.
- 6 TRAI has also recommended a multi-stakeholder watchdog for enforcing Net Neutrality and proposed reasonable measures of traffic management, in line with TRAI guidelines.
- 7 International treaties, court orders, government order on blocking certain sites is exempt from these guidelines.



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